

Bhopal's New GAS LEAKS

Conflicting accounts and revelations about Arjun Singh's role add a sad new chapter to the disaster

| By Ambreesh Mishra |

A quarter of a century after the Bhopal gas disaster when its principal actors thought they had buried its ghost, the stench of betrayal has again pervaded the air. A series of sensational developments since the incomplete verdict of the C.M.'s court in Bhopal on June 7, that let off Union Carbide's Indian honchos and officials lightly, have exposed how deep the rot ran when it came to justice for the lakhs of victims of the tragedy. The sense of outrage at the

meagre two-year punishment to the Indians associated with the erstwhile Union Carbide India became more acute as Bhopal's public enemy No.1, UCC chief Warren Anderson, remains far away from the clutches of the law. It's only now come to light not just how he was allowed to get away but why the Arjun Singh Government of the time took such a decision on December 7, 1984.

Between June 1, 1982 and May 31, 1983, Carbide had donated Rs. 1.5 lakh, not a mean sum in the early 1980s, to the Churhat Children's

Welfare Society whose secretary was Arjun Singh's son Ajeya. At one point, Arjun barely managed to avoid getting singled by the controversy surrounding the society's lottery which was subject to a judicial inquiry. Ajeya claims that the donation was returned on moral grounds. Yet, the money was taken during a period when there were two leaks from the plant in 1982 in which scores were hospitalised. While the Government kept telling the Vidhan Sabha that nothing was wrong, the Industry and Labour Departments, which enforced laws like Air and Water (Control of Pollution) Acts and Factories Act gave it a clean bill.

The howlers in the subsequent arrest and release of Anderson are hard to ignore. A case was registered at Hanumanganj police station against Anderson and others on December 3, 1984. The curious fact is that the state Government issued a notification the very next day transferring the case to the CBI, whose officers promptly arrived in Bhopal on December 5 to take charge and registered their own FIR on December 6. Yet, when Anderson landed in Bhopal on December 7, it was the police that rushed in to arrest him. Later the same day, he was released on a bond of Rs 25,000 and surreptitiously whisked away from the Carbide's plush guest house in Bhopal through a back gate. Upon Arjun's orders, a state Government plane then flew him to Delhi. The then collector Moti Singh and SP Swaraj Puri, are now in the eye of a storm on how they arrested and released Anderson in a case that was under the CBI's charge in the first place. Besides, they let go of him when the charges against him included Section 304(II), an offence in which bail can only be granted by a judicial magistrate. One account has it that section 304(II) was deleted from the FIR at the Hanumanganj police station before he was granted bail.

On June 11, an application was moved in the Bhopal C.M. court by victims to try Moti and Puri under Sections 166 and 221.35 of the IPC for their apparently illegal conduct of letting Anderson go. Meanwhile, another activist on June 14 filed

SIPRA DAS/www.indiatodayimages.com

PANKAJ TIWARI/www.indiatodayimages.com



ARJUN SINGH, THE CHIEF MINISTER OF MADHYA PRADESH THEN (LEFT); HIS SON AJEYA, THE THEN SECRETARY OF CHURHAT CHILDREN'S WELFARE SOCIETY

DID UCC'S Rs 1.5-LAKH DONATION TO HIS SON'S TRUST INFLUENCE ARJUN'S ORDER TO RELEASE ANDERSON?